

3. CHEEK, ET AL. v. FITZPATRICK, ET AL., 25CV0391**Motion to Quash**

On January 7, 2026, pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1), specially-appearing defendants James Fitzpatrick and Gloria Fitzpatrick (collectively, “specially-appearing defendants”) filed the instant motion to quash service of summons and second amended complaint (“SAC”) on the grounds that the court lacks personal jurisdiction (general and specific) over specially-appearing defendants.

On March 9, 2026, plaintiffs filed a timely response to the motion. On March 13, 2026, specially-appearing defendants filed a timely reply.

On March 16, 2026, plaintiffs’ counsel filed a supplemental declaration in response to specially-appearing defendants’ reply. Because this declaration is not an authorized filing, the court does not consider it.

1. Background

This is a personal injury action brought against the driver and owners of the allegedly at-fault vehicle. Specially-appearing defendants own the subject-vehicle and are both residents of Nevada. Neither of them were physically present during the underlying incident.

On November 26, 2025, specially-appearing defendants were served the summons and SAC as nonresidents pursuant to the provisions of Vehicle Code section 17451. (Bissonnette Decl., filed Mar. 9, 2026, ¶ 4 & Ex. 2.)

2. Request for Judicial Notice

Plaintiffs’ request for judicial notice (contained in plaintiffs’ opposition brief filed March 9, 2026) is not properly before the court because it was not filed in a separate document. (Cal. Rules of Ct., R. 3.1113, subd. (I).) Even if the request were properly before the court, the court would deny it for the same reasons as stated in the court’s

tentative ruling issued September 18, 2025, related to specially-appearing defendants' first motion to quash.

3. Legal Principles

If a defendant properly files a motion to quash service of summons for lack of personal jurisdiction, the plaintiff has the burden of establishing by a preponderance of the evidence the prima facie facts entitling the court to assume jurisdiction. (*Viaview, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 209–210.) A judge has jurisdiction to make an initial determination about the court's alleged lack of personal jurisdiction where, as here, it is challenged by a "specially appearing" defendant. (*Ziller Electronics Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1228.)

4. Discussion

Plaintiffs argue the court has personal jurisdiction over specially-appearing defendants because they gave their son express or implied permission to use the subject-vehicle within the State of California. (Veh. Code, § 17451.) Vehicle Code section 17451 ("Service of process on nonresident") provides: "The acceptance by a nonresident of the rights and privileges conferred upon him by this code..., or in the event the nonresident is the owner of a motor vehicle then by the operation of the vehicle anywhere within this state by any person with his express or implied permission, is equivalent to an appointment by the nonresident of the director [of motor vehicles] or his successor in office to be his true and lawful attorney upon whom may be served all lawful processes in any action or proceeding against the ... nonresident owner growing out of any accident or collision resulting from the operation of any motor vehicle anywhere within this state by himself or agent, which appointment shall also be irrevocable and binding upon his executor or administrator." (*Ibid.*)

Specially-appearing defendants appear to concede in their moving papers that they permitted their son to drive the subject-vehicle and knew he would drive it in California. (See Mtn. at 1:27–28.) They claim, however, that these facts do not give rise to the level

of intentional conduct needed to establish California's personal jurisdiction over defendants. The court disagrees.

In the absence of evidence showing that specially-appearing defendants did not permit their son to use the vehicle within the State of California, the court finds that plaintiffs have met their burden of establishing by a preponderance of the evidence the prima facie fact that specially-appearing defendants implicitly permitted their son to use the vehicle in the State of California. (*Cf. Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 869–870 [finding no permissive use of a rental vehicle where the rental agreement expressly limited use of said vehicle to use in the State of Arizona].)

Therefore, service was valid under Vehicle Code section 17451. The motion to quash is denied.

TENTATIVE RULING # 3: THE MOTION TO QUASH IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.